

administration to make at the expense of the owner or occupier or of the state Government or the local authority, as the case may be, such further accommodation works as are considered necessary and are to be by the railway administration.

(2) The accommodation works made under sub-section (1) shall be maintained at the cost of the owner or occupier of the land, the State Government or the local authority, at whose request the works were made.

(3) In the case of any difference of opinion between the railway administration and the owner or occupier, the State Government or the local authority, as the case may be, in relation to -

- i) the necessity of such further accommodation works
- ; or
- ii) the expenses to be incurred on the construction of such further accommodation works ; or
- iii) the quantum of expenses on the maintenance of such further accommodation works,

it shall be referred to the Central Government whose decision thereon shall be final.

Comments

Section 17, sub-section (1) provides that an owner or occupier of any land or the State Government or a local authority desiring any additional accommodation work may require the railway administration to carry out such work at the cost of such owner, occupier, the state Government or the local authority.

Sub-section (2) provides that the works carried on under sub-section (1) shall be maintained at the cost of the owner, occupier, the State Government or the local authority at whose request the works were done.

Sub-clause (3) lays down that in case of any difference between the railway administration and the owner, occupier or the State Government or the local authority, in relation to the necessity of or expenses incurred on the construction of accommodation works, the same shall be referred to the Central Government whose decision thereon shall be final.

18. Fences, gates and bars – The Central Government may, within such time as may be specified by it or within such further time, as it may grant, require that –

- (a) boundary marks or fences be provided or renewed by a railway administration for a railway or any part thereof and for roads constructed in connection therewith ;
- (b) suitable gates, chains, bars, stiles or hand-rails be erected or renewed by railway administration at level crossings ;
- (c) persons be employed by a railway administration to open and shut gates, chains or bars.

Comments

Section 18 provides that the Central Government may require boundary marks or fences to be provided by a railway administration and further provides that suitable gates, chains, bars, etc. may be erected and renewed at level crossing or that persons be employed by a railway administration to open and close such gates, chains, or bars etc.

Obligation on railways to provided fencing, if absolute – There is no duty on the part of the railway administration to fence the Railway line so as to prevent children from getting over the railway tracks. It cannot be the connection that providing fencing to the railway quarters located in the precincts of the station would safeguard the children from going to the line. At any rate, in the present case, there is no evidence whatsoever that the railway quarters of the plaintiff's father was not provided with fencing. Even if such fencing is provided, the Railways cannot be blamed if children are allowed by the parents to go out of the fencing.

19. Over bridges and under bridges – (1) Where a railway administration has constructed lines of rails across a public road at the same level, the State Government or the local authority maintaining the road, may, at anytime, in the interest of public safety, require the railway administration to take the road either under or over the railway by means of a bridge or arch with convenient ascents and descents and other convenient approaches instead of crossing the road on the level, or to execute such other works as may in the circumstances of the case, appear to the State Government or the local authority maintaining the road to be best adapted fro removing or diminishing the danger arising from the level crossing.

(2) The railway administration may require the State Government or the local authority, as the case may be, as a condition of executing any work under sub-section (1), to undertake to pay the whole of the cost of the work and the expense of maintaining the work, to the railway administration or such proportion of the cost and expenses as the Central Government considers just as reasonable.